

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



May 7, 2018

The Honorable John M. Thompson
Judge of the Superior Court
County of San Diego
1100 Union Street
San Diego, CA 92101

Re: Daniel Hopper
CDC No: P93616
Case No: SCD145054
Date of Sentence: April 5, 2004

Dear Honorable John M. Thompson:

The purpose of this letter is to provide the court with authority to resentence Daniel Hopper pursuant to Penal Code Section 1170, subdivision (d). Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

It is noted, Inmate Hopper has been conducting himself in a positive program for a number of years, he completed the Offender Mentor Certification Program General Education Diploma in 2005, completed college courses and has participated in numerous self-help groups and vocational training programs. Hopper has received one Serious Rules Violation Report dated in 2000 for covering his cell window.

A review of the Electronic Records Management System and Strategic Offender Management System indicates Inmate Hopper is a 36-year first term offender received from San Diego County on October 5, 2000, pursuant to a conviction for PC Section 187 Murder 1st degree. He has a Minimum Eligible Parole Date of February 11, 2043. He has programmed exceptionally well on his current term, and should be commended for his behavior and work ethic. It should be noted that Inmate Hopper committed his crime at an early age (18) when he had little family support including a father and family members who were involved in gangs. During his incarceration he has taken full advantage of opportunities to prepare himself for his eventual release to society

Having reviewed the enclosed documentation it appears that Inmate Hopper's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

A handwritten signature in black ink, appearing to read 'SCOTT KERNAN', with a large, sweeping flourish extending from the end of the signature.

SCOTT KERNAN
Secretary

Enclosures:

Abstract of Judgment – Prison Commitment – Indeterminate
Minute Order
Information

cc: Honorable Peter C. Deddeh, San Diego County Presiding Judge
Michael M. Roddy, San Diego County Court Executive Officer
Amy Kimpel, Attorney, Judicial Council of California
District Attorney
Public Defender